

Approved as to
form only:

D. White
Date: 9/18/2013

MEMORANDUM OF UNDERSTANDING

This Memorandum of Understanding ("MOU") is made and entered into this _____ day of _____, 2013, by the Friends of the Cheyenne Botanic Garden, a non-profit corporation organized under the laws of the State of Wyoming ("Foundation"), and the City of Cheyenne, a municipal corporation organized under the laws of the State of Wyoming, 2101 O'Neil Avenue, Cheyenne, Wyoming ("City").

SECTION ONE. INTRODUCTION

The Friends of the Cheyenne Botanic Garden have established a Foundation to provide financial support for future development, expansion, and enhancement of the Cheyenne Botanic Gardens. The purpose of this MOU is to summarize the mutual understandings of the Foundation and the City regarding future gifts which may be made by the Foundation to the City for the purposes stated herein. This MOU shall be made a part of the Foundation's records and is intended as a guide to those who will administer the Foundation in the future.

SECTION TWO. DESCRIPTION OF FOUNDATION PURPOSES

The Foundation may engage in any fund-raising activity that is permitted under local, state and federal law for the purpose of increasing the principal of various endowment accounts which may be established by the Foundation to support the future development, expansion and enhancement of the Cheyenne Botanic Gardens. The Foundation represents to the City that it is qualified as a charitable organization and that donors are or will be entitled to charitable contribution tax deductions in connection with gifts to the Foundation under applicable provisions of the Internal Revenue Code.

SECTION THREE. NAMING RIGHTS

The Foundation may accept gifts from donors in exchange for special recognition for such gifts in the form of "naming" rights to certain facilities, structures, areas, programs, or activities of the Cheyenne Botanic Gardens. Gifts that are given in exchange for "naming" rights shall be deposited into a separate endowment fund that shall be managed by a separate Executive Committee consisting of the President of the Foundation, the Foundation Treasurer, the Director of the Cheyenne Botanic Gardens, the Director of the City of Cheyenne Parks and Recreation Department, and a member of the Governing Body of the City of Cheyenne designated by the President of the Cheyenne City Council. The Executive Committee shall review all naming rights proposals and shall present its recommendations regarding any such proposals to the Mayor of the City of Cheyenne. No naming rights proposal shall be implemented by the City in the absence of the approval of the proposal by the Executive Committee and the Mayor. A naming rights proposal that has been approved by the Executive Committee shall constitute a "gift instrument" as defined in W.S. § 17-7-302(a)(iii).

SECTION FOUR. ADMINISTRATION OF "NAMING RIGHTS" GIFTS

A. All funds derived from the sale of naming rights shall be deposited and invested by the Foundation in a separate, earmarked, and dedicated "naming rights" endowment fund.

B. Subject to the terms and conditions of naming rights proposals approved under Section Three of the MOU, it is mutually understood and agreed that Wyo. Stat. §§ 17-7-301, *et seq.*, limit the discretion of the Executive Committee with regard to the liquidation or disposition of principal placed in the endowment fund to be created pursuant to this section of this MOU.

C. Subject to the terms and conditions of approved naming rights proposals and subject to the discretion of the Executive Committee, income generated from this endowment fund shall be added to the principal of the endowment fund or disbursed to the City to support development, design, construction or enhancement of new structures, facilities, areas, programs or activities of the Cheyenne Botanic Gardens.

D. Subject to the terms and conditions of approved naming rights proposals, income derived from this endowment fund shall not be used to defray routine operating expenses of the Cheyenne Botanic Gardens unless specifically approved by the Executive Committee.

E. Except as specifically provided by the terms and conditions of approved naming rights proposals, subject to applicable statutory restrictions on the disposition of principal, and subject to the discretion of the Executive Committee, funds derived from the sale of naming rights may also be used in one or more of the following ways:

1. To complete construction of the expansion and renovation of the Botanic Gardens greenhouse and conservatory if City funds are insufficient for this purpose due to circumstances beyond the control of the City.

2. After completion of the expansion and renovation of the Botanic Gardens greenhouse and conservatory, to pay for out-of-pocket expenses of the City incidental to the implementation of a naming rights proposal, such as required signage, forms, and advertising.

SECTION FIVE. RECOGNITION

In recognition of any gifts made to the Foundation pursuant to an approved naming rights proposal, the City agrees to attach, affix, or place signs or plaques to recognize the donor's contributions to facilities, structures, areas, programs, or activities of the Cheyenne Botanic Gardens as specified in the naming rights proposal and to provide donor recognition in print or electronic media produced by the City, and may include without limitation, the City's website, the City's "Facebook" and "Twitter" sites, and maps, pamphlets, or guides which publicize the Cheyenne Botanic Gardens.

SECTION SIX. BINDING OBLIGATIONS

This MOU shall not become binding upon the City of Cheyenne until approved by the Governing Body of the City of Cheyenne and executed by the Mayor and City Clerk. This MOU may be terminated by the City, at any time, with or without cause, upon thirty (30) days' written notice. The City's obligations under any naming rights proposal which has been approved by the Governing Body of the City of Cheyenne prior to the effective date of the termination of this MOU shall survive the termination of this MOU and shall remain in full force and effect as provided for in any such approved naming rights proposal.

SECTION SEVEN. GOVERNMENTAL IMMUNITY

The City of Cheyenne retains all immunities and defenses available under the Wyoming Governmental Claims Act, W.S. §§ 1-39-101, *et seq.*

SECTION EIGHT. MISCELLANEOUS

- A. Governing Law. This MOU shall be governed by the laws of State of Wyoming.
- B. Amendment. This MOU may be amended at any time by written agreement signed by all parties.
- C. Effective Date. The effective date of this MOU shall be the date it is fully executed by the parties following the approval of this MOU by the Governing Body of the City of Cheyenne.

FRIENDS OF THE CHEYENNE BOTANIC
GARDEN, INC.

By:

Date

Signature of Officer

Name of Officer

Title of Officer

CITY OF CHEYENNE

Date
(SEAL)
Attest:

Richard L. Kaysen, Mayor

Carol Intlekofer, City Clerk